

**UNITED STATES BANKRUPTCY COURT
WESTERN DISTRICT OF MISSOURI**

In Re: Enter debtor(s) name)
)
) Case No. Enter Case No.
 Debtor(s))
)

**DEBTOR'S CERTIFICATION AND MOTION FOR ENTRY OF CHAPTER 13
DISCHARGE DUE TO PLAN COMPLETION AND NOTICE OF DEADLINE AND
OPPORTUNITY TO OBJECT**

COMES NOW debtor(s) and makes the following certifications and moves for entry of an Order of Discharge for which debtor(s) is/are eligible under all applicable Bankruptcy laws and rules and states as follows:

1. Debtor(s) has/have completed a personal financial management instructional course provided through an agency approved by the United States Trustee and have filed a certificate of completion. **11 U.S.C. §1328(g)(1)**
2. Debtor(s) has/have not received a discharge in a case filed under chapter 7, 11, or 12 in the 4-year period preceding the date of the order for relief under this chapter and has/have not received a discharge in a case filed under chapter 13 in the 2-year period preceding the date of such order. **11 U.S.C. §1328(f)**
3. Domestic Support Obligations (check all applicable boxes below) **11 U.S.C. §1328(a):**
 - a. ☐ Debtor(s) did not owe a Domestic Support Obligation under any judicial or administrative order or by statute when the bankruptcy petition was filed and has/have not been required to pay any such obligation since the petition date.
 - b. ☐ Debtor [*specify debtor's name if a joint case*], as of the date of the filing of the petition, had/had been required to pay a Domestic Support Obligation. Debtor has paid all such amounts required by the Chapter 13 plan, whether paid directly or through plan payment, that became due between the filing of the bankruptcy petition and today.
 - c. ☐ Debtor [*specify debtor's name if a joint case*] has been ordered, after the filing of the bankruptcy petition, to pay a Domestic Support Obligation. Debtor has paid all such amounts required that became due between the entering of the Domestic Support Order and today.
 - d. If box 3(b) or 3(c) or both is checked, provide the following information:

i. Name & address of each Domestic Support Obligation recipient:

ii. Debtor's current address:

iii. Debtor's current employer's name & address:

4. Payments to creditors (check the applicable boxes below):

a. ☐ The confirmed Chapter 13 plan does not provide for direct payments to any creditors.

b. ☐ The confirmed Chapter 13 plan provides for the following direct payments (add as many lines as necessary for each creditor paid directly):

i. [*Creditor name*]

☐ Payments to this creditor are current as of today's date

☐ Payments to this creditor are not current

ii. [*Creditor name*]

☐ Payments to this creditor are current as of today's date

☐ Payments to this creditor are not current

iii. If direct payments to a creditor are not current, provide an explanation of the payments in default and the reason for the default:

5. If debtor(s) has/have claimed an exemption in real property in excess of the statutory limit listed in 11 U.S.C §522(p)(1), there is no proceeding pending in which the debtor(s) may be found guilty of a felony as described in 11 U.S.C §522(q)(1)(A) and the debtor(s) is/are not liable for a debt for the kind described in 11 U.S.C §522(q)(1)(B).

WHEREFORE, debtor(s) move(s) the Court to enter a discharge in this case.

Date: Enter Date

Enter Signature _____
Debtor/debtor's attorney

**NOTICE OF OPPORTUNITY AND DEADLINE TO OBJECT TO MOTION FOR
ENTRY OF CHAPTER 13 DISCHARGE DUE TO PLAN COMPLETION**

PLEASE TAKE NOTICE THAT WITHIN TWENTY- ONE (21) DAYS AFTER THE DATE OF THIS NOTICE you must file and serve a written objection to the motion. The objection must be filed electronically with the Bankruptcy Court at www.ecf.mowb.uscourts.gov. If you are a pro se creditor, you may file a written objection with the Clerk, United States Bankruptcy Court, Western District of Missouri, 400 E. 9th Street, Room 1510, Kansas City, MO 64106. Debtor's attorney and trustee will receive electronic notice when the objection is filed. If the debtor is pro se, you must serve your objection on the debtor.

IF YOU FAIL TO FILE A TIMELY OBJECTION, THE MOTION MAY BE GRANTED BY THE COURT WITHOUT A HEARING. The court may grant the motion without a hearing if the objection filed states inadequate grounds for denial.

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing Motion and Notice has been served by first class mail on all creditors and parties requesting notice.

Enter signature
Debtor/Debtor's Attorney

Instructions: Fill in all required information and serve on all creditors.

ECF Event: Bankruptcy>Motions/Applications/Requests>Chapter 13 Discharge